تام المالية
TAM CAPITAL

# CODE OF CONDUCT

## V1_APR 2025

**Approved by:** **Board of Directors**
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## Document Control

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## 1. Introduction

Tam Capital, licensed and regulated by the Capital Market Authority (CMA), offers securities management and arrangement services through a team of qualified professionals. The Company places the highest value on its reputation for integrity, recognizing it as both vital and vulnerable. Every employee, officer, and manager shares the responsibility to uphold this reputation by maintaining strong ethical and professional conduct with all stakeholders.

To ensure compliance with CMA regulations and internal policies, Tam Capital has established this Employees Code of Conduct. It governs the actions of all company representatives, including employees, trainees, temporary staff, contractors, and consultants, as applicable. Individuals are expected to understand and follow this Code and any additional policies relevant to their roles. Questions should be directed to supervisors, legal or HR representatives, or the Compliance Department.

Strict adherence to this Code is mandatory. Any breach may lead to disciplinary measures, including termination, and could result in civil or criminal liability under Saudi securities laws. Tam Capital enforces a zero-tolerance policy for serious violations to affirm its commitment to integrity as a core business principle.

### 1.1 Purpose and Scope

The Code of Conduct sets forth the core principles, policies, and legal obligations that guide Tam Capital's operations. It applies to all employees and others acting on the Company's behalf, as relevant. All employees must read and comply with the Code and are expected to:

- Demonstrate integrity, professionalism, and responsible use of company resources;
- Treat clients, colleagues, and stakeholders with fairness, respect, and consideration;
- Avoid actual or perceived conflicts of interest; and
- Follow the Employee Trading Rules when conducting personal securities transactions.

## 2. Policy Statements

### 2.1 Fundamental Responsibilities

### 2.2.1 Core Principles

All Tam Capital employees are expected to act in the Company's best interest and uphold the highest standards of professionalism by:

1. Performing their duties with competence, honesty, diligence, and fairness.
2. Following all relevant policies, procedures, lawful instructions, and professional codes of conduct.
3. Complying with laws and regulations related to investment activities to support market integrity.

Key responsibilities include:

- Maintaining integrity and avoiding misconduct such as fraud, dishonesty, or misrepresentation.
- Acting with care and in the best interest of both the Company and its clients.
- Managing responsibilities effectively and upholding proper market conduct.
- Communicating with clients clearly, fairly, and without misleading information.
- Treating clients fairly, ensuring advice and services are suitable to their needs.
- Identifying and managing conflicts of interest responsibly.
- Refraining from contacting clients or taking company information when considering or pursuing other employment.

These obligations help safeguard Tam Capital’s reputation and ensure compliance with regulatory and ethical standards.

### 2.2 Fiduciary Duties

It is the policy of the Company to comply with all the regulations, requirements and instructions of the CMA, and will provide any information, material and/or records required by the CMA to ensure compliance.

The Company will provide its services to its clients with the following Principles:

- Integrity, by conducting its business with integrity.
- Loyalty, where the Company will act in all cases in good faith and in the interests of the client.
- Skill, care and diligence, by conducting its business with due skill, care and diligence.
- Efficiency of management and control, by taking reasonable care to organize affairs responsibly and effectively, with adequate risk management policies and systems.

- Financial prudence, by maintaining adequate financial resources in accordance with the Rules issued by the CMA.
- Elite market conduct, by developing, maintaining and observing proper standards of market conduct.
- Paying due regard to client's interests, by treating them fairly and paying due regard to their interests.

### 2.1.3 Loyalty

Employees must act in the best interests of Tam Capital and its clients, within the scope of their roles. When placed in a position of trust, an employee has a fiduciary duty to demonstrate full loyalty, good faith, and prioritize the client's interests.

Misconduct such as front running, preferential trade allocation, or unfair placement practices is strictly prohibited. As a fiduciary, the Company must exercise informed, responsible proxy voting—failure to do so, or voting without proper consideration, especially on significant governance matters, may breach fiduciary obligations. All proxy voting records must be accurately maintained for a minimum of 10 years.

### 2.1.4 Conflicts of interest

Employees must avoid situations where a conflict of interest may arise between Tam Capital and its clients, particularly if it could impact the fairness of transactions or services provided. If a conflict does occur, the employee must act fairly, disclose the conflict, and either decline to act or proceed transparently.

To manage potential conflicts, employees should:

- Disclose any actual or potential conflict in writing to the client—unless doing so would reveal inside information. In such cases, they must still take steps to ensure the client is treated fairly.
- Report any client losses resulting from a conflict to the Compliance Officer to arrange fair compensation, unless the conflict was disclosed and the client gave written consent to proceed.

At all times, employees must not prioritize Tam Capital's interests over those of the client.

### 2.1.5 Secret Profits

Employees must not use a client's property, information, or business opportunities for personal gain or for the benefit of others unless they have fully disclosed the intended use to the client and received the client's written consent.

### 2.1.6 Care, Skill, and Diligence

Employees have a duty to act with the care, skill, and diligence that would reasonably be expected from someone in a similar role, possessing:

- The typical knowledge and experience expected for that position, and
- Their own actual knowledge and experience.

### 2.1.7 Understanding Risk

Employees must not engage in transactions, provide advice, manage investments, or accept collateral from a client without first taking reasonable steps to ensure the client understands the associated risks.

In particular, employees must clearly explain the nature and extent of risks when dealing in:

- Derivatives, contingent liability securities, or non-retail investment funds;
- Illiquid or speculative securities, including challenges in valuing such assets.

When assessing the suitability of advice or transactions, employees should consider:

- The client’s knowledge of relevant markets and instruments;
- The client’s financial position, including disclosed net worth or portfolio value;
- The client's experience and activity in the markets;
- The size and type of previous transactions;
- The client’s stated investment goals.

### 2.1.8 Professionalism

It is essential to hire professionals with strong skills, experience, integrity, and sound judgment to effectively serve clients across various financial products and services. Employees must:

- Possess appropriate qualifications, technical knowledge, and experience relevant to their roles.
- Demonstrate honesty, sound judgment, and professionalism.
- Carry out their duties diligently and in alignment with applicable financial regulations and laws.
- Have no history of fraud, dishonesty, or violations of laws governing securities or investor protection.

Employees must not:

- Induce clients into transactions by offering gifts or incentives, directly or indirectly.
- Accept gifts or inducements that may create a material conflict of interest with their duty to clients.
- Share or participate in any client losses under any circumstance.

All employees are required to follow the Code of Conduct. Violations will be investigated and may result in disciplinary action, including termination, in accordance with internal policies.

Employees must also ensure:

- Client orders are executed at the best available market price.
- Clients receive better trade execution than what would be obtained for the employee or institution itself.

Finally, employees should be familiar with applicable regulatory requirements and internal policies and systems, and must act in a way that upholds both client interests and market integrity.

### 2.1.9 Healthy work environment

A safe, respectful, and productive work environment must be maintained at all times. Discrimination, including racial or religious slurs, offensive jokes, or any behavior that contributes to a hostile workplace, is strictly prohibited.

Workplace safety is a top priority. Employees are expected to follow all relevant safety procedures and comply with internal policies to ensure a secure and healthy working environment for all.

### 2.1.10 Client Money

Clients are not to be dealt with directly in cash. Instead, all client funds must be deposited with a bank, with proper arrangements in place to ensure smooth and secure handling of transactions on behalf of the client.

In accordance with regulatory requirements, client money must be held in accounts that are fully segregated from the institution's own accounts to ensure clear separation and protection of client assets.

### 2.1.11 Exposure to Information

Employees must only access client information, accounts, transactions, or documents when necessary to serve the best interests of the client or the organization. Unauthorized attempts to view or use such information are considered a serious breach of conduct and may lead to strict disciplinary action, including termination.

Confidentiality must be maintained both during and after employment. Proprietary or sensitive information about the organization, its clients, employees, suppliers, or partners must never be shared with unauthorized individuals.

Employees are responsible for protecting access to workspaces and devices. Confidential information should not be discussed in public or unsecured settings such as elevators, restaurants, public transport, or on speakerphones.

Client information must be kept confidential except when:

- Disclosure is legally required;
- The client has provided written consent;
- Disclosure is necessary to perform services for the client;
- The information is no longer confidential.

When sharing information with third parties (vendors, suppliers, service providers), employees must only disclose what is authorized and necessary, and only to those with a legitimate need to know.

Any disclosure of information about current or former employees must be handled with discretion, limited to those with a need to know, and may require approval from senior management based on the importance of the information.

### 2.1.12 Market manipulation

It is strictly prohibited to engage in any trading activity that creates false or misleading impressions of market activity or manipulates security prices. This includes:

- Entering orders or executing trades to give a deceptive impression of demand or supply;
- Artificially setting bid, ask, or trade prices.

Examples of manipulative or deceptive practices include:

- Fictitious trades or transactions with no real change in ownership (wash trades);
- Placing matched buy and sell orders with prior knowledge of the opposite order;
- Buying or selling securities at progressively higher prices to create a misleading price trend;
- Establishing or maintaining predetermined price levels or ranges;
- Entering orders without intent for execution.

Employees must follow the Personal Dealing Rules for further guidance on appropriate market conduct.

### 2.1.13 Insider Dealing

Employees must not use privileged or insider information about a security or issuer to buy or sell before that information is publicly available. Any insider information gained must not be used for personal benefit or to unfairly advantage or harm others.

Disclosure of Inside Information and Insider Trading Defined

- Inside information applies only to traded securities.
- It refers to any security whose price or value would be significantly affected if the information were made public.
- A person is considered to be directly trading if they trade for their own account or place bids/offers on the exchange.
- Indirect trading includes acting as an agent, arranging trades for relatives or business associates, or trading through others on their behalf.
- Insider trading occurs when any direct or indirect trading involves inside information.

An ***Insider*** includes:

- Directors, senior executives, or employees of the issuer with inside information.
- Individuals who receive inside information through family ties.
- Those who gain inside information via business relationships, including from the issuer or business associates.
- Those who obtain inside information through contractual relationships related to the issuer.

***Insider information*** is:

- Information related to a security,
- Not publicly disclosed or available,
- That a reasonable person would understand could materially impact the security's price or value if disclosed.

Prohibition of Disclosure of Inside Information

- Insiders must not disclose inside information if they know or should know the recipient might trade based on it.
- Non-insiders who receive inside information from insiders must also not disclose it if they know or should know it could be used for trading.

Prohibition of Insider Trading

- Insiders are prohibited from trading based on inside information.
- Non-insiders who obtain inside information and know or should know it's insider information are also prohibited from trading based on it.

### 2.1.14 Handling Rumours

No transactions—whether for clients or personal accounts—should be based on rumors. If there is reason to suspect that a rumor or unverified information is being spread deliberately to manipulate the market, it must be reported immediately to the Compliance Department.

It is strictly prohibited to spread false statements or misleading opinions aimed at influencing the price or

### 2.1.15 Untrue Statement

Untrue statements include, but are not limited to:

- False or materially inaccurate statements.
- Encouraging others to make false or inaccurate statements.
- Statements containing material misrepresentations.
- Omitting material facts that could affect an investor's decision. (A material fact is any information that could significantly impact a security's price or value.)

Prohibition on Untrue Statements

Employees are prohibited from making or failing to make required statements that are:

- False or misleading regarding material facts, verbally or in writing.
- Intended to influence the price or value of a security.
- Used to induce someone to buy, sell, or exercise rights related to a security.
- Circulated directly or indirectly to manipulate the market.

This applies whether the employee makes the statement or causes others to do so.

### 2.1.16 Responsibility and Liability

Employees may be held liable for damages if they:

- Make untrue statements for profit or commercial gain related to security transactions.
- Omit required material information affecting a security purchase or sale.

Claimants must prove they were unaware the statement was untrue or omitted, and that they would have acted differently had they known the truth. Liability applies if the employee knew, or should have known, the information was false or materially incomplete.

### 2.1.17 Assuming Other Offices

Employees must obtain formal written approval from the CEO before holding a position in another company. The CEO will consult with the Head of Compliance Department prior to granting approval.

## 2.2 Conduct of Business

To comply with the requirements for code of conduct, employees are required to observe the provisions of this document as per authorized person's regulations.

### 2.2.1 Relationship with Clients

The Company will maintain professional relationships with all Clients focused on protecting their interests and dealing honestly and with integrity. Employees are expected to follow this principle at all times. The Company will provide Clients with necessary information to make fair decisions but shall not disclose confidential information. Employees must perform their duties with skill, care, and due diligence.

### 2.2.2 Relationship with Stakeholders

The Company recognizes its business impacts society and requires that decisions consider the interests of stakeholders including shareholders, Clients, Employees, suppliers, partners, communities, and others. Employees must conduct business accordingly.

### 2.2.3 Media Relations and Public Statement

Only designated spokespersons may provide information to media or security analysts to ensure clarity and accuracy. Employees must not initiate or respond to media inquiries without CEO's written authorization. Employees speaking publicly as private citizens must clarify they do not represent the Company.

### 2.2.4 Know Your Customer

Before trading for a customer, employees must collect information on identity, financial situation, source of funds, investment knowledge, experience, and objectives. Customer information must be updated every three years. If a customer refuses to provide required information, no relationship shall be established.

### 2.2.5 Anti-Money Laundering and Terrorism Financing

Employees must comply with Saudi AML laws, CMA regulations, and Company policies to prevent financial crimes. Employees dealing with clients and transactions are critical in defending against money laundering risks.

### 2.2.6 Authorization

Employees must not engage in activities requiring CMA registration unless duly registered and expressly authorized in writing by the Compliance Officer.

### 2.2.7 Selling Methods and Standards

Employees shall be civil and considerate, avoiding undue pressure or deception, clearly stating their purpose and identity to customers.

Initial Customer Contact: Written

Relationship Officers may send initial business letters on official Company letterhead, disclosing status. Letters sent to multiple persons must be approved as advertisements by the Compliance Officer.

Initial Customer Contact: Personal

Unsolicited personal calls or visits must be at suitable times unless agreed otherwise. Employees must disclose name, Company representation, and purpose of the call. Calls must end promptly if the customer declines further contact. Business cards must be provided at face-to-face meetings. Officers must be truthful, avoid exaggerations, unfair criticism, or unauthorized advice, and respond clearly to customer queries.

### 2.2.8 Independence and Objectivity

Employees must maintain independence and objectivity, avoiding conflicts of interest. Board memberships or trustee roles that may conflict must be disclosed and approved. All beneficial interests and compensations outside the Company must be reported. Employees shall conduct themselves to avoid embarrassment or perceived indebtedness.

### 2.2.9 Honesty & Fairness

Employees must ensure all representations and information to customers are accurate and not misleading. Charges must be fair and reasonable. Employees should understand customers' financial situations to avoid promoting unsuitable or excessive transactions.

### 2.2.10 Client Priority

Employees must prioritize Clients' needs promptly with due care and protect their interests.

### 2.2.11 Inducements / Gifts / Entertainment

Employees must not induce customers by gifts or preferential treatment that might influence advice. Normal business entertainment and minor promotional gifts are permitted. Sharing customer losses is prohibited. Gifts above SR 200 or frequent entertainment must be approved and reported. A register of gifts and entertainment is maintained and reviewed monthly. Significant travel, overnight stays, unaccompanied entertainment, or frequent gifts must be reported.

### 2.2.12 Suitability of Investments and Client's Risk

Employees must gather and consider client financial and investment profile, including risk tolerance. Suspicious matters must be reported immediately in writing to the Compliance Officer.

### 2.2.13 Diligence

Employees must act with skill, care, and diligence, prioritizing customers' interests and market integrity.

### 2.2.14 Churning

Employees should avoid unnecessary frequent or excessive transactions for customers.

### 2.2.15 Staff Borrowing

Employees cannot borrow from or lend to co-workers, customers, or suppliers without approval from their Department Head and Compliance Officer. Acting as guarantor requires specific approval.

### 2.2.16 Documentation

All documentation must be handled carefully and stored securely to protect confidentiality. No agreement modifications without Compliance Officer and Executive Management consent.

## 2.3 Company Information & Property

### 2.3.1 Use and Protection of Company Assets

Employees are responsible for protecting both the physical and intangible assets of the Company, including but not limited to cash, securities, business plans, customer and supplier data, intellectual property, facilities, and technology systems. These assets should only be used for legitimate business purposes. Any misuse, negligence, or unauthorized use—including the use of communication systems like email or voicemail in a way that could harm or embarrass the Company—is considered a breach of duty and may be treated as fraud.

### 2.3.2 Intellectual Property

All work created during employment, such as inventions, data, software, designs, and client records, is the exclusive property of the Company. Employees must not disclose or use confidential or proprietary information without written approval. Any such information must not be removed from Company premises without proper authorization. Upon termination of employment, all Company materials must be returned, and confidentiality obligations remain in effect indefinitely.

### 2.3.3 Record Keeping

All records, data, and reports must be accurate, complete, and maintained in a manner that reflects true business activities. Financial documents must comply with applicable accounting standards and honestly reflect the Company's financial position. Records must be retained in line with internal policies, and employees are strictly prohibited from destroying documents that may be relevant to investigations, legal actions, or regulatory inquiries.

## 2.4 Employee Directives

### 2.4.1 General HR Policies

Employees are expected to uphold the Company's ethical standards and best practices. These policies apply to all employees and outline mutual expectations in behavior and performance.

### 2.4.2 Employee Obligations

Employees must demonstrate professionalism, courtesy, and respect in all interactions, whether with colleagues, superiors, or subordinates. Personal conduct should promote a safe and productive workplace. Employees must avoid conflicts of interest by not offering services or advice to competitors. Staying informed on developments relevant to the Company's business is a continual obligation.

### 2.4.3 Ethics

All operations must comply with Company policies and applicable laws, including labor and regulatory requirements. Company funds and assets must be used only for authorized and legitimate purposes. Any form of record falsification is prohibited. Confidential information must be protected, and disclosure to external parties—including government entities—requires prior approval from executive management. Bribery and dishonest practices are strictly forbidden and subject to disciplinary action.

### 2.4.4 Communications

Employees must communicate clearly and respectfully with customers and assess needs with care. Only authorized personnel may speak to the media. Employees should only communicate externally if their actions fall within their role and authority.

### 2.4.5 Dress Code and Appearance

Employees are expected to maintain a professional appearance.

- **Male employees:**
  - Saudi nationals: Ghotra and Thobe
  - Non-Saudis: Business suits with ties or equivalent formal attire

- **Female employees:**
  Should wear attire respectful of cultural norms, including the Islamic Hijab.

- Personal hygiene, grooming, and neatness are essential.

### 2.4.6 Tidiness

Employees are responsible for maintaining a clean and organized workspace, including shared areas. Confidential materials should be securely stored.

### 2.4.7 Memos and Notices

Company communications may be shared via email, intranet, shared folders, or notice boards for employee awareness.

### 2.4.8 Telephone Usage

Company telephones are for business use. Personal calls should be minimized and limited to local calls. International personal calls require prior approval and may be charged to the employee.

### 2.4.9 Mobile Phones

Phones should be on silent or vibrate mode in the office and switched off during meetings. Mobile phone use is prohibited in designated restricted areas such as trading rooms.

### 2.4.10 Internet Usage

Employees with internet access must use it responsibly. Sharing confidential, illegal, offensive, or harmful content is strictly prohibited. Internet usage for personal purposes must not interfere with work operations. The Company's IT policy applies to all users.

### 2.4.11 Company Assets

Employees are responsible for safeguarding any Company assets in their care. Unauthorized removal of assets requires prior written permission and a gate pass. Misuse, negligence, or theft of Company property is a serious offense and may lead to disciplinary action.

### 2.4.12 Clients, Guests, and Visitors

Only authorized employees may host or entertain clients, and all expenses must be approved in advance. Visitors should be logged and directed to appropriate meeting areas. Access to management offices is restricted. Former employees require prior written approval to visit.

### 2.4.13 Harassment Policy

The Company is committed to a workplace free from harassment and discrimination, including those based on gender, race, disability, religion, or other personal characteristics. Bullying, abuse of authority, and sexual harassment are strictly prohibited. Any such behavior will result in

disciplinary action, including dismissal. Employees are encouraged to report any incidents to their manager or HR.

### 2.4.14 Working Hours

Employees must adhere to the established work schedule. Unapproved or excessive absenteeism may result in disciplinary action. Standard working hours are 40 hours per week, subject to adjustment based on local customs or special occasions such as Ramadan.

### 2.4.15 Prayer and Rest Periods

Muslim employees are permitted reasonable time for prayers. Lunch breaks are scheduled in accordance with operational needs.

### 2.4.16 Ramadan Working Hours

Adjusted hours during Ramadan will comply with applicable labor laws and will be communicated in advance by the Human Resources department.

## 2.5 Compliance with the Code of Conduct

Each Department Head is responsible for ensuring that their team members understand and adhere to the Code of Conduct. They are also accountable for cultivating a work environment in which ethical behavior and compliance are expected, encouraged, and rewarded.

Any waiver of the Code's provisions for executive officers or directors must be granted only by the CEO or the Board of Directors and must be promptly disclosed to shareholders.

Any suspected violations of this Code should be reported immediately to the relevant Department Head or the Compliance Department. Reports may be submitted anonymously, and the identity of individuals who report violations will be kept confidential, except on a strictly “need to know” basis. The Compliance Department or the concerned Department Head will inform the CEO of any reported incidents.

The Company will promptly investigate all reported violations. Any breach of the Code, retaliation against individuals who report violations, or failure to comply with the Code will result in disciplinary action, including, where appropriate, termination of employment.

All officers, department heads, managers, and employees may be required periodically—typically on an annual basis—to confirm in writing that they understand and comply with this Code and have either reported or are unaware of any violations.

### 2.5.1 Consequences of Violating the Code

Violating the Code may result in disciplinary actions, which may include verbal or written warnings, suspension, probation, or termination of employment, depending on the severity and nature of the offense.

### 2.5.2 Examples of Conduct Leading to Disciplinary Action

The following examples illustrate behavior that may result in disciplinary measures:

- Unauthorized or excessive absence
- Persistent punctuality issues or timekeeping violations
- Poor job performance or inappropriate conduct
- Intimidation, bullying, or harassment of another employee
- Misuse, abuse, or mishandling of company property
- Refusal to comply with legitimate instructions from supervisors or management
- Violation of company procedures, service rules, or internal regulations

### 2.5.3 Examples of Gross Misconduct

The following acts constitute gross misconduct and may lead to immediate disciplinary action, including dismissal:

- Theft, fraud, or deliberate falsification of records
- Intentional breach of company policies or procedures
- Acts of physical violence or assault
- Vandalism or willful destruction of company property
- Misuse or misappropriation of company funds or assets
- Being under the influence of drugs or alcohol during working hours
- Negligence resulting in serious damage, loss, or injury
- Major disobedience or insubordination
- Gross violation of safety procedures or standards
- Moral misconduct within the workplace
- Failure to fulfill key employment obligations
- Unauthorized disclosure of confidential or proprietary information
- Absence from work without valid approval for 14 consecutive days or a total of 30 days within one contract year

### 2.5.4 Compliance with HR Policies

This Code must be read in conjunction with the Human Resources Policy Manual and other relevant company policies. Employees are expected to refer to these documents to ensure full understanding and compliance.

### 2.5.5 Compliance with the Information Security Policy

The Information Security Policy is a core component of this Code. All employees are required to read, understand, and comply with it. Any violation, as outlined in the "Information Security Violations" section of the policy, may result in disciplinary action, depending on the severity of the incident, as determined by management.

### 2.5.6 Acknowledgment of the Code

All employees must complete an acknowledgment form after reviewing this Code, confirming that they have read, understood, and agree to comply with its provisions. New employees are also required to sign this acknowledgment as part of their onboarding process.

Failure to submit the acknowledgment may lead to disciplinary measures, including termination. Regardless of the acknowledgment status, every employee is expected to comply fully with the Code’s requirements and uphold the highest standards of integrity in all business activities.

### 2.6 Handling the Code of Conduct

To ensure employees always refer to the most up-to-date version, the Code of Conduct will be maintained by the Compliance Department, which is responsible for its creation and regular backup, in line with standard data protection procedures.

The document will be accessible to all users. Employees are strictly prohibited from copying, reproducing, or sharing the Code with unauthorized individuals inside or outside the organization.

## 3 Amendment to the Code

The Code of Conduct shall be reviewed periodically and updated atleast once in 3 years, or as and when needed, in line with the regulations and company policy.